

The State By Rajaji Nagar vs A1. Kantaraju on 10 January, 2023

IN THE COURT OF XXXIX ACMM, BENGALURU

Present : Sandesh Prabhu.B. BA(LAW), LL.B.

XXXIX ACMM, Bengaluru,

C.C.No.33051/2011

Dated : On this the 10th January, 2023

Complainant: The State by Rajaji Nagar
Police Station, Bengaluru
(By Senior Assistant Public Prosecutor)

V/s

Accused: A1. Kantaraju,
S/o Chennaiah,
Aged about 46 years,

A2. Chennaiah H. G.,
S/o Late Gujjarappa,
Aged about 76 years,(Abated)

A1 and 2 both are
R/at No.1206, 13th Main,
4th Cross, Prakashanagar,
Bengaluru.

A3. Saikrishna,
S/o Chennaiah,
Aged about 42 years,

A4. Sailela,
W/o Ramaiah,
Aged about 40 years,

A5. Jayapadma,
C/o Chennaiah,
Aged about 38 years,

2

CC.33051/2011

A3 to A5 are R/at No.1202,
3rd Main, 3rd Cross,
Manasa Nagar,
Nagarabhavi 1st Stage,
Bengaluru-72.

(A1 to A5 by Sri. Savitha C. K. Advocate)

Date of commission of offence : 26.08.2011
Date of report of the offence : 26.08.2011
Name of the Complainant : Smt. Renuka
Date of Commencement of recording of Evidence : 07.08.2014

Date of Closing of evidence : 14.02.2020
Offences complained are : u/s 498(A), 506 r/w 34 of IPC, Sec.3 & 4 DP Act

Opinion of the Judge : Accused found not guilty

(Sandesh Prabhu B.)
XXXIX ACMM, Bengaluru

-:: JUDGEMENT ::-

The PSI of Rajaji Nagar Police Station has filed charge sheet against accused for the offences punishable u/s 498(A), 506 r/w 34 of IPC, Sec.3 and 4 D.P. Act.

3

CC.33051/2011

2. The case of the prosecution in nutshell is as follows :-

The marriage of the complainant was took place alongwith the accused on 12.05.2000 as per Hindu rites and customs at Saraswati Kalyana Mantapa of Mahalakshmi Layout, Bengaluru and as per the demand made by the accused, the CW2 and 3 had given 30 grams of gold ornaments, Rs.20,000/- worth of cloths, wrist watch and Rs.1,00,000/- as dowry to the accused No.1 and also given 80 grams of gold ornaments to the complainant and performed the marriage by spending huge amount. It is further allegation against the accused that, after the marriage

when the complainant residing in her matrimonial house situated at Prakash Nagar, Rajaji Nagar, the accused No.1 to 5 started giving physical and mental cruelty to the complainant to bring additional dowry of Rs.2,00,000/- and if she does not bring additional dowry they will kill her by pouring kerosene oil on her and also given live threat to the complainant. Therefore complainant gave complaint against the accused.

4

CC.33051/2011

3. The complaint was registered against the accused for the punishable u/s 498(A), 506 r/w of IPC Sec.3 & 4 of of D.P. Act and after investigation has filed charge sheet against the accused persons for the aforesaid offence. During crime stage itself, the accused persons were produced before the court and subsequently they have enlarged on bail. After filing charge sheet, the predecessor in office has taken cognizance of the offences against the accused persons and summons was issued to accused persons. In pursuance of the summons the accused were appeared before the court.

4. Thereafter charge sheet copies were furnished to the accused persons as contemplated u/s 207 of Cr.P.C. Thereafter heard the learned prosecution and counsel for the accused persons about framing of charge. Since there were sufficient materials to frame

charge against the accused persons, charges were

framed u/s 498(A), 506 r/w 34 of IPC, Sec.3 and 4 D.P.

Act. The sum and substance of the accusation was read

5

CC.33051/2011

over to the accused persons and their answers to the

said accusation was denial and they claimed to be tried.

Hence, the prosecution was given an opportunity to

establish the guilt of the accused persons.

5. The prosecution to establish the guilt of the accused persons it got examined 8 witnesses as PW1 to 8 and got marked documentary evidence as per Ex.P1 to Ex.P5. The PW2 and 8 did not turn up before the court for their cross examination and therefore their evidence was discarded by this court. The prosecution has failed to examine the remaining cited witnesses and their evidence was dropped by this court.

6. When the case is pending for trial, the accused No.2 has reported as dead and therefore the case against him was stands abated as per the order of the court dated 29.09.2021.

7. After completion of prosecution evidence, statement of the accused persons as contemplated u/s 313 of Cr.P.C was recorded. Their answers to the

6

CC.33051/2011

incriminating circumstances arised in the evidence was

denial and not chosen to lead any defence evidence.

8. Heard the arguments of learned prosecution

and counsel for accused.

9. The points that arise for consideration of this

Court are as under :

--: POINTS :--

1.

Whether the prosecution proves beyond all reasonable doubt that, the marriage of the CW1 was took place alongwith the accused on 12.05.2000 as per Hindu rites and customs at Saraswati Kalyana Mantapa of Mahalakshmi Layout, Bengaluru. After the marriage when CW1 residing in her matrimonial house situated at Prakash Nagar, Rajaji Nagar, the accused No.1 to 5 started giving physical and mental cruelty to her and thereby committed an offence punishable u/s 498A r/w 34 of IPC?

2. Whether the prosecution proves beyond all reasonable doubt that, the accused given life threat to CW1 by saying that, "if she does not give additional dowry they will kill her by pouring kerosene oil on her" and thereby committed an offence punishable u/s 506 of IPC?

3. Whether the prosecution proves beyond all reasonable doubt that the accused received 30 grams of gold ornaments, Rs.20,000/□worth of cloths, wrist watch and Rs.1,00,000/□as dowry and also given 80 grams of gold ornaments to the CW1 and performed the marriage by spending huge amount and thereby committed an offence punishable u/s 3 of Dowry Prohibition Act?

4. Whether the prosecution further proves beyond all reasonable doubt that on the same date, time, the accused demanded to bring Rs.2,00,000/□as additional dowry and thereby committed an offence punishable U/Sec.4 of Dowry Prohibition Act?

5. What Order?

10. The findings of this Court on above points are as under:□Point No.1 to 4: In Negative Point No.5 : As per the final order for the following:□REASONS

11. POINT No.1 to 4 :□All these points are connected each other and in order to avoid the repetition of the said facts and appreciation of the evidence, all these points are taken up together for common consideration.

12. It is the specific case of the prosecution that, the marriage of the complainant was took place alongwith the accused on 12.05.2000 as per Hindu rites and customs at Saraswati Kalyana Mantapa of Mahalakshmi Layout, Bengaluru and as per the demand made by the accused, the CW2 and 3 had given 30 grams of gold ornaments, Rs.20,000/□worth of cloths, wrist watch and Rs.1,00,000/□as dowry to the accused No.1 and also given 80 grams of gold ornaments to the complainant and performed the marriage by spending huge amount. It is further allegation against the accused that, after the marriage when the complainant residing in her matrimonial house situated at Prakash

Nagar, Rajaji Nagar, the accused No.1 to 5 started giving physical and mental cruelty to the complainant to bring additional dowry of Rs.2,00,000/□and if she does not bring additional dowry they will kill her by pouring kerosene oil on her and also given live threat to the complainant. Therefore complainant gave complaint against the accused.

13. The prosecution to establish the guilt of the accused it got examined 8 witnesses as PW1 to PW8. The PW1 is the complainant and victim, PW2 is the mother of the victim who deposed about the incident, PW3, PW5 and PW6 are the relatives of victim who deposed about the incident, PW4 is the witness to the spot mahazar, PW8 is the PSI who conducted partial investigation and filed charge sheet against the accused. The PW2 and 8 did not turn up before the court for their cross examination and therefore their evidence was dropped by this court. The prosecution has failed to examine the remaining cited witnesses and their evidence was dropped by this court. The prosecution alongwith the oral evidence has produced and got marked five documents as per Ex.P.1 to Ex.P.5 which includes complaint, spot mahazar, marriage invitation card, marriage photographs.

14. Now it is necessary to analyse the oral evidence of prosecution witnesses. The prosecution got examined PW1 who is the complainant and victim who deposed that, her marriage was took place alongwith the accused on 12.05.2000 at Saraswathi Convention Hall situated at Mahalakshmi Layout of Bangalore. The witness further deposed that, prior to the marriage the engagement was took place in the year 1999 and at the time of marriage negotiation, her parents had agreed to give 80 grams of gold ornaments to her and also some ornaments and cloths to the accused No.1. The witness further deposed that, the accused also demanded to give Rs.2,00,000/□as dowry and when her family members refused to give so much of amount, after marriage negotiation the accused agreed to receive an amount of Rs.1,00,000/□as dowry and also demanded to perform the marriage in a marriage hall at Bangalore. The witness further deposed that, when they went to the cloth shop to purchase the cloths for marriage the accused No.1 demanded that, a blazar set should be given to him and therefore her parents had spent Rs.20,000/□to purchase cloths to the accused No.1. The witnesses further deposed that, after the marriage when she went to her matrimonial house the accused asked with the complainant whey she did not bring all the ornaments which were worn by her at the time of marriage and the complainant told that, she worn the ornaments of her relatives at the time of marriage and therefore she had given back the said ornaments to her relatives.

15. The witness further deposed that, the accused were quarreling with her that she was taking more time to bath and was giving a piece of bath shop to her and was insisting to wear the old cloths. The witness further deposed that, in the year 2003, 2007, 2011 she had given complaint against the accused and at last she had given present complaint on 09.07.2011 which is marked as Ex.P.1. The witness further deposed about drawing of the panchanama by the police.

16. The prosecution further got examined PW2 who is the relative of the victim who deposed that, the marriage of the complainant was took place alongwith the accused No.1 and prior to the marriage the father of the accused No.1 demanded to give Rs.2,00,000/□as dowry to them and as per the demand, the sister of the complainant had given Rs.1,00,000/□as dowry to the accused No.1. The witness further deposed that, the accused also demanded to give 150 grams of gold ornaments, but the family members of the complainant had given 130 grams of gold ornaments as

dowry to the accused. The witness further deposed that, after the marriage the complainant started living in her matrimonial house situated at Prakash Nagar and the complainant informed about the ill-treatment given by the accused, but she had not seen the alleged incident directly. This witness subsequently did not turn up before the court for her cross examination and therefore her evidence was discarded by this court.

17. The prosecution further got examined PW3 who is close relative of the complainant who deposed that, the marriage of the complainant was took place along with the accused in the year 2000 and the witness further deposed that, the complainant informed her about the ill-treatment given by the accused by making phone call. The prosecution treated this witness as partially hostiled witness and cross examined by suggesting that, the accused has given life threat to the complainant by demanding to bring additional dowry and this witness has admitted the such suggestion put by the prosecution. The accused counsel subjected this witness for cross examination.

18. The prosecution got examined PW4 who is the witness to the spot mahazar who deposed about drawing of spot mahazar on 11.07.2011 as per Ex.P.2. The accused counsel did not cross examine this witness.

19. The prosecution further got examined PW5 who is the sister of the complainant deposed that, in the month of October-2000 one Mahalingaiah brought the accused to her house for the marriage negotiation and in the said marriage negotiation she agreed to give ornaments and cloths to the bride and bride groom at the time of engagement. The witness further deposed that, after the engagement of the complainant alongwith the accused No.1, the accused started demanding to perform the marriage in the marriage hall at Bangalore and as per the demand made by the accused, they performed the marriage of the complainant at Saraswathi Convention Hall of Mahalakshmi Layout, Bangalore. The witness further deposed that, after the marriage when the complainant started residing in her matrimonial house, the accused were quarreling with the complainant by demanding to bring a share in the property of her father and they were giving physical and mental cruelty to the complainant. The witness further deposed that, when her sister who is the complainant became pregnant and she gave birth to a female child, after one and half month of the delivery, the accused came to see the child and at that time the accused quarreled with the complainant for not giving gold chain and other ornaments to the child. The witness further deposed that, after nine months of delivery, they sent the complainant to her matrimonial house again by giving some household essentials and even after giving said household essentials the accused started giving ill-treatment to the complainant. The prosecution has treated this witness as partly hostiled witness and cross examined by suggesting that, at the time of marriage Rs.1,00,000/- and gold ornaments were given as dowry to the accused No.1 and the witness has admitted the said suggestion put by the prosecution. Further the witness has admitted that, the accused gave life threat to the complainant by demanding to bring additional dowry. The accused counsel subjected this witness for cross examination.

20. The prosecution further got examined PW6 who is the relative of the complainant who deposed that, after the marriage the complainant started residing in her matrimonial house situated at Prakash Nagar and he came to know that, after the marriage the accused were demanded to bring

gold ornaments and therefore the complainant had given complaint against the accused. The prosecution treated this witness as hostile witness and cross examined by suggesting that, the accused had also given mental and physical cruelty to her, but the witness denied the such suggestion put by the prosecution.

21. Lastly the prosecution got examined PW8 who is the investigating officer who deposed about drawing of spot panchanama in the place of incident, recording of statement of witness, arresting of the accused, obtaining of the documents of the complainant, thereafter filing charge sheet after completion of the investigation. This witness subsequently did not turned up before the court for his cross examination and therefore his evidence was discarded by this court.

22. In a matter like matrimonial dispute which takes place inside within the four corners of the house, there may not be direct eye witness to the incident and therefore the evidence of victim alongwith the evidence of other witnesses has to be carefully appreciated in order to come to the right conclusion of the allegation made against the accused. As it is discussed above, the prosecution got examined PW2, PW3, PW5 and PW6 as the eye witnesses to the allegation made against the accused. The said witnesses are none other than the close relatives of the complainant. As it is discussed above the said witnesses in their oral evidence deposed that, they came to know about the ill treatment given by the accused through the victim who is the PW1. Therefore on the basis of the evidence given by the PW2, PW3, PW5 and PW6 they are not the direct witness to the incident, but their evidence has to be considered as corroborative evidence alongwith the evidence of the complainant in order to conclude about the allegation made against the accused.

23. The first and foremost allegation made against the accused is that, at the time of marriage the accused had demanded to give Rs.2,00,000/- in cash and gold ornaments as dowry to them and as per the demand made by the accused, the CW2 and CW3 had given Rs.1,00,000/- in cash, 130 grams of gold ornaments as dowry to the accused No.1 and also given 80 grams of gold ornaments to the complainant. The burden lies upon the prosecution to establish about giving of so much dowry to the accused. On careful perusal of the entire materials available on record, the prosecution has not produced any documentary evidence about producing bills of purchase of ornaments or any other documents to establish the said fact. The prosecution has relied upon the oral evidence of victim and other witnesses in order to establish the receiving of dowry by the accused. As it is discussed above, the victim who is PW1 has categorically deposed that, the CW2 and CW3 had given Rs.1,00,000/- in a cash and gold ornaments as dowry to the accused No.1 and at the time of marriage negotiation one Mahalingaiah and Umesh were present. The prosecution has cited the said Mahalingaiah and Umesh as CW11 and CW12, but the prosecution has failed to examine the said two material witnesses. Further the PW1 in her oral evidence has also deposed that, one Pandurangappa who is CW10 was also present when the marriage negotiation was took place, but the prosecution has failed to examine the said witness also. The prosecution got examined PW2 who deposed about the giving of dowry to the accused at the time of marriage, but the said witness did not subsequently turn up before the court for her further examination.

24. The PW3, PW5 and PW6 who are the other witnesses examined on behalf of the prosecution in their examination in chief never deposed about giving of dowry to the accused as alleged in the

complaint. The PW5 who is the sister of the victim in her examination in chief never deposed about giving of dowry, but during her cross examination by the prosecution she admitted about giving of Rs.1,00,000/- as dowry to the accused.

25. The victim who is PW1 during her cross examination categorically deposed that, in the marriage negotiation the accused told not to give any dowry to them and the witness further voluntarily deposed that, they have voluntarily told that, they will give ornaments and cloths at the time of marriage. The said part of the deposition of the victim dated 17.12.2016 reveals that, there was no any demand by the accused to give dowry as stated in the complaint. Further the victim who is PW1 during her further cross examination dated 22.03.2019 she deposed that, she had given complaint in the year 2003 before Peenya Police Station and in the said complaint she has not stated that, the accused had received the dowry as stated in the present complaint. The said fact also creates doubt about the allegation of receiving dowry by the accused. Further on careful perusal of entire oral and documentary evidence produced by the prosecution, the complainant or the other witnesses have not deposed that, who present when the alleged dowry was given to the accused and there is no explanation about the place or shop from which the ornaments were purchased in order to give the same to the accused. Hence, on careful evaluation of entire oral and documentary evidence produced by the prosecution there is no convincing evidence that, the accused have received dowry from the parents of the complainant as alleged in the complaint.

26. The other allegation made against the accused is that, when the complainant was started living in her matrimonial house, the accused given physical and mental cruelty to the complainant by demanding to bring additional dowry of Rs.2,00,000/- and given life threat to the complainant by saying that, if she fails to bring additional dowry they will pouring kerosene on her and will kill her. The burden lies upon the prosecution to establish about the said allegation made against the accused. As it is discussed above the prosecution got examined the complaint as Ex.P.1 and in the said complaint, the complainant has badly stated that, the accused given physical and mental cruelty to her to demanding additional dowry, but the complainant in her complaint has not stated exact date of the incident when the accused demanded to give additional dowry and given life threat to her. On perusal of the oral evidence of victim who is PW1 she only deposed that, after the marriage when she was living alongwith the accused they asked with her about the ornaments worned by her on the date of marriage and was not allowing her to take bath properly. The PW1 in her examination in chief never deposed that, the accused demanded to bring additional dowry of Rs.2,00,000/- and gave life threat by saying that, if she fails to bring additional dowry they will kill her by the pouring kerosene oil. The prosecution has not made any attempt to elicit the said fact stated by the complainant in her complaint. The facts stated by the victim in her complaint is entirely different from the facts stated before the court in her oral evidence. Further on perusal of the cross examination of victim she deposed that, she filed complaint against the accused earlier before the Peenya P.S. and also Rajaji Nagar P.S. by alleging the similar allegations, but no such documents have been produced by the prosecution to establish the said fact. The facts stated by the victim in her oral evidence is entire contrary to facts stated in the complaint which raises doubt about the allegation made in the complaint.

27. Further the prosecution to establish the said ill-treatment given by the accused it got examined PW2 who is the relative of the victim and the said witness in her examination in chief deposed that, the accused had given ill-treatment to the victim by demanding additional dowry, but the said witness subsequently did not turn up before the court for her cross examination and therefore her evidence cannot be considered as evidence in order to establish the said allegation made against the accused. Moreover the PW2 in her examination in chief itself admitted that, she is not the eye witness to the ill-treatment given by the accused and she came to know about the said allegation only through the victim.

28. Further on perusal of the evidence of PW3 who is also the relative of the victim, the said witness is also deposed that, she came to know about the ill-treatment given by the accused through the complainant. The PW3 in his examination in chief never deposed that, the accused demanded to bring additional dowry and given life threat by saying that, if the victim fails to bring additional dowry they will kill her by pouring kerosene. The witness during his cross examination by the prosecution admitted the said fact. If really there was such ill-treatment given by the accused then the PW3 might have deposed the said fact in his examination in chief itself. Moreover, the PW3 is not the direct eye witness to the incident.

29. As it is discussed above, the prosecution got examined PW5 who is the sister of the victim and on perusal of the oral evidence of said witness she deposed about some facts about the alleged ill-treatment given by the accused, but the said fact has not been stated by the victim in her oral evidence. Moreover the facts stated by the PW5 she during in her examination in chief is entirely contrary to the facts stated by the said witness in her statement before investigating officer. Further on perusal of the cross examination of PW5 categorically deposed that, all the facts stated by her in her examination in chief were told to her by victim who is PW1 and she came to know about the alleged ill-treatment from the victim only and she is not the direct eye witness to the said allegation.

30. The prosecution also got examined PW6 who is the brother of the victim and on perusal of the oral evidence of said material witness he only deposed that, his sister has given the complaint by stating that, the accused were demanding to bring additional dowry and except that he is not knowing any other facts. Further on perusal of the oral evidence of this witness, he denied the suggestion put by the prosecution that, he has given statement by stating that, the accused had given physical and mental cruelty to the complainant. On careful perusal of the evidence of PW6 who is the brother of the complainant himself, he did not support the case of the prosecution and he never deposed about the alleged ill-treatment given by the accused.

31. As it is discussed above the victim who is PW1 in her oral evidence categorically deposed that, earlier also she filed similar complaint against the accused before Peenya P.S. and also Rajaji Nagar P.S., but no such documents has been produced before the court in order to establish the alleged ill-treatment given by the accused. If the prosecution has produced and got marked those previous complaints given by the present complainant, then the truth might have coming out. Hence on careful evaluation of entire oral and documentary evidence produced by the prosecution there is no sufficient material evidence to conclude about the alleged ill-treatment given by the accused and the

life threat given by the accused by saying that, if the complainant fails to bring Rs.2,00,000/□as additional dowry then they will kill her by pouring kerosene.

32. On careful evaluation of entire oral and documentary evidence, the oral evidence of victim as well as other family members who are PW2, PW3, CW5 and CW6, their entire oral evidence contains lot of contradictions to the statement given before the investigating officer. There is no clinching and convincing evidence to conclude about the allegation made against the accused. The complainant in her complaint and also in the oral evidence has made some bald allegations against the accused, but the complainant has not stated the specific act attributed by the accused which leads to filing of present case. Therefore this court comes to the conclusion that, there is no sufficient materials produced by the prosecution to establish the allegation of physical and mental cruelty given by the accused to the complainant. Therefore the accused are entitled for benefit of doubt.

33. It is the cardinal rule of criminal jurisprudence that no man should be punished unless the guilt against them is proved beyond reasonable doubt. As it is discussed above the prosecution has failed to establish the guilt of the accused No.1, 3 to 5 beyond reasonable doubt. The accused 1, 3 to 5 are entitle for benefit of doubt. Therefore this court comes to the conclusion that the prosecution has failed to establish that the accused 1, 3 to 5 have committed the offence punishable u/s 498(A), 506 r/w 34 of IPC, Sec.3 and 4 D.P. Act. Hence for the said reasons this court answer point no.1 to 4 in negative.

34. POINT No.5:□In view of discussion held on above points, this court proceeds to pass the following:

□: ORDER ::□Acting under section 248 (1) of Cr.P.C., the accused 1, 3 to 5 are hereby acquitted for the offences punishable u/s 498(A), 506 r/w 34 of IPC, Sec.3 and 4 D.P. Act.

The bail bonds of the accused 1, 3 to 5 and sureties shall stands cancelled.

(Dictated to the stenographer, transcribed and typed by her and corrected by me and then pronounced in open Court on this the of 10th January 2023) (Sandesh Prabhu B.) XXXIX ACMM, Bengaluru ANNEXURE

1. Witnesses examined on behalf of Prosecution PW□ : Smt. Renuka W/o Kantaraju PW□2 : Smt. Neelamma W/o Pandurangaiah PW□3 : Sri. C. P. Ranganth S/o Pandurangaiah PW□4 : Narasimaiah S/o Late Gujjarappa PW□5 : Puttagiriyamma S/o Ningappa PW□6 : Ranganatha S/o Rangappa PW□8 : Rajeshekar S/o Lakshmanaiah

2. Documents exhibited on behalf of Prosecution Ex.P1 : Complaint Ex.P1(a) : Signature of PW1 Ex.P2 : Spot Puchanama Ex.P2(a) : Signature of PW□ Ex.P3 : Marriage invitation card Ex.P4 : Photographs

3. Material objects exhibited on behalf of prosecution □Nil□

4. List of witnesses and documents on Defense side □Nil□(Sandesh Prabhu B.) XXXIX ACMM, Bengaluru